



SUPREME COURT OF GEORGIA
Case No. S25U0800

March 13, 2025

The Honorable Supreme Court met pursuant to adjournment.

The following order was passed:

IN RE: MOTION TO AMEND 2025-2.

The Court having considered the 2025-2 Motion to Amend the Rules and Regulations for the Organization and Government of the State Bar of Georgia, it is ordered that the following rules be amended, effective April 17, 2025: Part I – Creation and Organization, Chapter 5, Rule 1-501 (License Fees), and Rule 1-501.1 (License Fees – Late Fee).

The amended rules will read as follows:

**PART I
CREATION AND ORGANIZATION**

...

**CHAPTER 5
FINANCE**

Rule 1-501. License Fees

(a) Annual license fees for membership in the State Bar of Georgia shall be due and payable on July 1 of each year. Upon the failure of a member to pay the license fee by September 1, the member shall cease to be a member in good standing. When such

license fees, including any late fees, costs, charges, or penalties incurred by the State Bar of Georgia as a result of a canceled or dishonored payment of any type or kind for the current and prior years, have been paid in full, the member shall automatically be reinstated to the status of a member in good standing, except as provided in subsection (b) of this rule.

(b) If a member of the State Bar of Georgia is delinquent in the payment of any license fee, late fee, assessment, reinstatement fee, or cost, charge, or penalty incurred by the State Bar of Georgia as a result of a canceled or dishonored payment of any type or kind and of any nature for one year, the member shall be automatically suspended and shall not practice law in this state. The suspended member may thereafter lift such suspension only upon the successful completion of all of the following terms and conditions:

(1) payment of all outstanding dues, assessments, late fees, reinstatement fees, and any penalties due and owing before or accruing after the suspension of membership;

(2) provision to the membership section of the State Bar of Georgia of the following:

(i) a letter from the Office of the General Counsel of the State Bar of Georgia certifying that the suspended member is not presently subject to any disciplinary procedure; and

(ii) a letter from the Commission on Continuing Lawyer Competency certifying that the suspended member is current on all requirements for continuing legal education;

(3) payment to the State Bar of Georgia of a non-waivable reinstatement fee as follows:

(i) \$150 for the first reinstatement paid within the first year of suspension, plus \$150 for each year of suspension thereafter

up to a total of three years;

(ii) \$250 for the second reinstatement paid within the first year of suspension, plus \$250 for each year of suspension thereafter up to a total of three years;

(iii) \$500 for the third reinstatement paid within the first year of suspension, plus \$500 for each year of suspension thereafter up to a total of three years; or

(iv) \$750 for each subsequent reinstatement paid within the first year of suspension, plus \$750 for each year thereafter up to three years.

(4) The yearly increase in the reinstatement fee shall become due and owing in its entirety upon the first day of each Bar year and shall not be prorated for any fraction of the Bar year in which it is paid.

(5) A member who has been suspended pursuant to this rule may submit a request in writing to the Executive Committee for an extension of time to complete any of the requirements in subsection (b). The request must state with particularity the reasons and need for the extension. The Executive Committee, upon sufficient and reasonable cause, may grant such an extension.

(c) A member suspended under subsection (b) above for three years in succession shall be immediately terminated as a member without further action on the part of the State Bar of Georgia. The terminated member shall not be entitled to a hearing as set forth in subsection (d) below. The terminated member shall be required to apply for membership to the Office of Bar Admissions for readmission to the State Bar of Georgia. Upon completion of the requirements for readmission, the terminated member shall be required to pay the total reinstatement fee due under subsection (b) (3) above, plus an additional \$750 as a readmission fee to the State

Bar of Georgia.

(d) Prior to suspending a member under subsection (b) above, the State Bar of Georgia shall send, by certified mail and email, a notice of pending suspension to the member's last known official address and email address as contained in the official membership records. The notice shall specify the years for which the license fee is delinquent and state that unless the fee and all penalties are paid within 60 days, the membership shall be suspended.

Rule 1-501.1. License Fees – Late Fee

(a) Any member who has not paid his or her license fee for the State Bar of Georgia on or before August 1 shall be penalized in the amount of \$175, which will be added to the member's outstanding license fee.

(b) A member may submit a request in writing for waiver of any late fees to the Executive Committee of the State Bar of Georgia. Upon good cause shown, such as extreme financial hardship, illness, or natural disaster, any late fee or penalty imposed by this rule may be waived by a majority vote of the Executive Committee.

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SUPREME COURT OF THE STATE OF GEORGIA Clerk's Office, Atlanta

I certify that the above is a true extract from the minutes of the Supreme Court of Georgia.

Witness my signature and the seal of said court hereto affixed the day and year last above written.

 , Clerk